Child Support and Protection Act

Sponsor Brief

1. Two fit parents should start equal.

Problem. An unmarried father with legally established paternity has no custodial status until he sues for it; the mother is sole custodian by statute.[1] In every case, Ohio law defaults to sole custody unless a parent files a shared-parenting plan.[2]

Solution. Once parentage is established, both parents have equal legal status. At the first custody decision, the court starts from shared parenting with at least 45 percent of the time for each parent. That starting point gives way to endangerment, a parent's inability or unwillingness, distance or school, repeated denial of the other parent's time, or the reasoned preference of a child 12 or older.

Foundation. Ohio already declares that divorcing parents "stand upon an equality."[3] Kentucky (2018), Arkansas (2021), West Virginia (2022), Florida (2023), and Missouri (2023) have enacted equal-parenting presumptions.[4]

2. Child support funds should benefit the child.

Problem. Ohio support orders state one undifferentiated amount, and Ohio has no procedure for asking how it was spent.

Solution. The order labels two parts. **Parental support** maintains the child's household (rent, utilities, food, transportation), with no accounting. **Accountable child support** covers child care, clothing, school, activities, and savings for the child. Once a year, the paying parent may ask **where**, not what: payee, date, and amount. A bank or card statement is enough, and no receipts are required. The total amount of support does not change.

Foundation. Federal law already defines child support to include support of "a child and the parent with whom the child is living."[5] Ohio already calculates child care separately.[6] Louisiana requires an accounting on a showing of good cause.[7]

3. A court order stays the order until the parents agree otherwise or a court changes it.

Problem. In practice, GALs, parenting coordinators, therapists, and agencies can end up controlling parenting time. Some orders tie a parent's time to a non-judge's approval.[8]

Solution. These professionals may investigate, recommend, mediate, and help carry out an order. They may not reduce, suspend, supervise, condition, or substantively change parenting time or status. A GAL's recommendation is evidence, and the GAL may be cross-examined. Emergency and protection-order authority is unchanged.

Foundation. Ohio's court rules already say GAL reports "shall not be considered determinative" and bar coordinators from "substantive changes in parenting time."[9] Ohio appellate courts hold that a court "may not delegate judicial authority to another entity absent the color of authority" and that "[d]ue process requires meaningful and independent judicial review" of a coordinator's decision.[10]

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[1] R.C. 3109.042(A).

[2] R.C. 3109.04(A)(1)–(2), (D)(1), (G).

[3] R.C. 3109.03.

[4] KRS 403.270(2); Ark. Code 9-13-101; W.Va. Code 48-9-102a; Fla. Stat. 61.13(2)(c); RSMo 452.375. Prior Ohio proposals: H.B. 508 (134th G.A.); H.B. 14 (135th G.A.).

[5] 42 U.S.C. 659(i)(2).

[6] R.C. 3119.05(P).

[7] La. R.S. 9:312.

[8] See *In re K.R.H.*, 2026-Ohio-583 (2d Dist.) (reversing an order leaving a father's time to a therapist's discretion).

[9] Sup.R. 8.06(A)(3); Sup.R. 6.42(B).

[10] *Weisgarber v. Weisgarber*, 2009-Ohio-20, ¶ 67 (5th Dist.); *Gregory v. Gregory*, 2019-Ohio-5210, ¶ 26 (1st Dist.).

4. A court order must have a practical enforcement mechanism.

Problem. A parent denied court-ordered time must file contempt alone, with no agency help and no hearing deadline, and make-up time is discretionary.[11]

Solution. The county child support agency, also designated the Family Support Enforcement Agency (FSEA), takes free complaints, obtains the order, hears both parents, and decides within 45 days. The remedy is make-up time of the same type and duration, plus a record of the denial. Repeated or serious denials go to the prosecutor and to contempt. Either parent may object to a judge, and a parent may always go straight to court.

Foundation. Ohio already uses this "agency determines, court enters unless a party objects within 14 days" model for support reviews and administrative paternity.[12] Michigan's Friend of the Court acts on parenting-time complaints and applies same-type, same-duration make-up time.[13]

How the Act works together

The four rules support one another. Equal status gives each parent a real starting point. Court-only changes make the order mean what it says. Practical enforcement makes the order work without a lawyer for every missed weekend. Labeled support ensures money designated for the child reaches the child. Allegations still matter: a parent may demand a hearing within 90 days, and a restriction based on an undecided allegation ends after 36 months, with one 45-day extension. Knowingly false allegations, proven by clear and convincing evidence, carry consequences, while honest reports are protected.

The Act amends nine sections and enacts five, using existing Ohio agencies, procedures, and statutes wherever possible.

What this Act does not do

- **It does not guarantee 50/50 in every case.** The starting point yields to safety, practicality, and a child's reasoned preference, with written findings.
- **It does not weaken domestic-violence or emergency protections.** A protection order issued after a full hearing removes the presumption, and emergency orders and child-protection custody are preserved.
- **It does not let an agency decide custody or contempt.** Nothing the FSEA decides binds until a court enters it, and every determination can be taken to a judge.
- **It does not allow stopping support because parenting time was denied.** Existing Ohio law forbids that, and the Act keeps the two separate.[14]
- **It does not create a statewide bureaucracy.** The county agency that already exists does the work, and parents pay no FSEA fee.
- **It does not create a new crime.** Interference with custody is already a crime in Ohio. The Act clarifies only that withholding court-ordered time without a lawful excuse is covered.[15]

In short

1. **Two fit parents start equal.**
2. **Money designated for a child benefits the child.**
3. **A court order stays the order until the parents agree otherwise or a court changes it.**
4. **A court order has a practical way to enforce it.**

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[11] R.C. 2705.031(B)(2); R.C. 3109.051(K).

[12] R.C. 3119.63–.65; R.C. 3111.49.

[13] MCL 552.511b, 552.642; compare Minn. Stat. 518.1751.

[14] R.C. 3109.05(D).

[15] R.C. 2919.23; *Toledo v. Parra*, 2013-Ohio-3182 (6th Dist.).